

		Here, the Cross-Complaint fails to allege all elements of the malicious prosecution claim. Gulham is ordered to serve notice.
5.	2025-1484192 Mucatel vs. Arbor Palms of Anaheim	Plaintiff Patricia Wallick’s unopposed motion to be appointed personal representative for Decedent Victor Mucatel is granted. Code Civ. Proc., § 377.31 states: “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, but the decedent’s successor-in-interest.” Here, Plaintiff submitted a declaration, confirming that she is the deceased plaintiff’s successor-interest, which complies with Code Civ. Proc., § 377.32. She states that the only other heirs at law and successors in interest aside from herself are her siblings Daniel Mucatel, Marc Mucatel and Joseph Mucatel (also Plaintiffs). (Wallick Decl., ¶¶ 2-3, Ex. A.) Plaintiff included consents signed by her siblings for her to be appointed representative of Decedent’s claims. Plaintiff shall give notice.
6.	2023-1339526 Huerta vs. Cedar Fair, LP	The motion of plaintiff Melanee Huerta, by and through her guardian ad litem, Wendy Mariona, substituting herself in as plaintiff in place of her guardian ad litem now that she has reached the age of majority is granted. Code Civ. Proc. §372(a)(1); <u>Facts</u> When this action was filed Plaintiff was a minor and a guardian ad litem was appointed. [Complaint (ROA #2), ¶ 3; second amended complaint “SAC”), ¶ 3; Application and Order filed 8/7/23 (ROA #8; Kruse Decl. (ROA # 136), ¶ 3.] Plaintiff was born on 10/11/2006. [Application and Order, ¶ 4.a; Kruse Decl., ¶ 4.] She is therefore now over 18. [<i>Id.</i>] <u>Discussion</u> Code of Civil Procedure section 372 provides that a minor must appear in an action through a guardian ad litem. Code Civ. Proc. §372(a)(1) (“When a minor, a person who lacks legal capacity to make decisions . . .). Once the minor reaches her majority, she no longer lacks legal capacity. As a result, the statutory authorization for appointment of

		a guardian ad litem expires and the appointment must terminate. Code Civ. Proc. §372(a)(1); <i>Chui v. Chui</i> (2022) 86 Cal.App.5th 929, 938–939 (under Probate Code: “Because Jacqueline and Michael are adults and there is no other ground for continuing Chen’s appointment as their guardian ad litem, the appointment must terminate.”). Plaintiff has reached her majority; that is, she is no longer a minor. Fam. Code, § 6500. Accordingly, her unopposed motion to substitute plaintiff in this action is granted.
7.	2021-1222421 Richards vs. LoanDepot, Inc.	On the motion of defendants loanDepot, Inc., loanDepot.com, LLC, and LD Holdings Group, LLC to correct the order taxing their costs under Code of Civil Procedure section 473(d), the court is inclined to reconsider the original order taxing the entirety of the expert witness costs sought by Defendants on the ground they are not recoverable under Code of Civil Procedure section 1033.5. [ROA #1401, 1393.] The court will hear from Plaintiff Tamara Richard’s counsel first, however, whether it disputes the validity or good faith of the 998-offer proffered by Defendants. <u>Facts</u> Jury trial of this action began on 1/24/25. Prior to that, on December 17, 2024, the Court granted nonsuit as to Plaintiff’s Retaliation Claim under Labor Code section 1102.5. (See ROA No. 1069.) This left the second, fifth, sixth, and tenth causes of action to be tried. Plaintiff did not pursue the tenth cause of action. After trial, the jury found that no harassment had taken place and found for Defendants on the remaining causes of action. [2/7/25 Minute Order (ROA #1214); Special Verdict Form (ROA #1218); Jury Polling Sheet (ROA #1271).] Judgment was entered on 3/6/25. [ROA # 1227.] Notice of entry was served electronically and by email on 4/2/25. [ROA # 1233.] Plaintiff has appealed from this judgment. [ROA #1240.] Defendants filed and emailed their initial memorandum of costs, limited to costs incurred prior to nonsuit on the non-FEHA retaliation claim, on 4/17/25. [ROA # 1246.] Plaintiff filed her motion to strike or tax costs on 5/7/25. [ROA # 1263.] The court did